Louisa County Water Authority
Board of Directors
September 13, 2023

MEMBERS PRESENT: Mr. William Douglas Smith, Vice-Chairman; Mr. Robert Morgan; Mr. Byron Wilson; Mr. David Kies; Mr. Tom Filer (*arrived at 6:06 pm*)

MEMBERS ABSENT: Mr. Judson Foster, Chairman; Mr. Bob Hardy

OTHERS PRESENT: Pam Baughman, General Manager; Mr. Hunter Martin, Water Operations Manager; Mr. Kyle Eldridge, Assistant County Attorney

A. Call to Order

Mr. Smith called the meeting to order at 6:00 pm.

1. ADOPTION OF THE AGENDA

Mr. Smith asked if there were any changes or additions to the agenda. The General Manager asked to add one Short Notice Item – Regional Plant Transfer Switch. Mr. Kies made a motion to adopt the agenda as amended. The motion was seconded by Mr. Morgan and carried 4-0 among the members present.

B. Presentations

C. Citizen Information

D. Consent Agenda

2. APPROVAL OF THE MINUTES:

A. AUGUST 9, 2023 – REGULAR BUSINESS MEETING

3. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – AUGUST 2023
B. APPROVAL OF DISBURSEMENTS – AUGUST 2023
C. CONSTRUCTION FUND – AUGUST 2023

The Board reviewed the Consent Agenda, including the Treasurer's Report. Upon completion of the review, Mr. Kies made a motion to approve the Consent Agenda and Treasurer's Report. The motion was seconded by Mr. Morgan and carried 4-0 among the members present.

E. Old Business

4. UPDATE – JAMES RIVER WATER PROJECT

The James River Water Authority met today at the Fluvanna County Administration Building. The following items were discussed:

1) The Army Corps of Engineering permitting process is moving along, with no set schedule, no timeline, no target dates, and no deadline to finalize the permit process. A new permit writer was assigned to the JRWA project due to the original permit writer being reassigned within the Corps. Time has been lost due to the transition. The Corps is supportive of the location.

2) The comprehensive agreement with Dominion Power is nearing completion.

3) The Department of Environmental Quality permit is now in the public comment phase.

4) The Phase III Archaeology Study has been bid and four responses received. The JRWA Board discussed the awarding of the work during closed session. Two sites have been identified on the Rose Property. Originally, the JRWA Board felt the Phase III Archaeology Study would be completed in October 2023, but a more realistic timeline is November / December 2023. The JRWA Board said they would be in receipt of the Corps permit prior to proceeding with the Phase III Archaeology Study.

5) Easement acquisitions are moving along. There are 17 total parcels to acquire easement from. Eight offers have been delivered to the property owners. Eight others are currently under review. One landowner has not been officially approached. There are no issues to date. The affected citizens have been kept informed throughout the process.

6) The JRWA Board has been working on cash flow projections. The timeline for permitting completion will dictate the timeline for large expenditures for construction work.

7) The Amended and Restated Comprehensive Agreement with Faulconer Construction has been approved by both the Fluvanna and Louisa County Board of Supervisors. The James River Water Authority Board approved the Comprehensive Agreement in the amount of $39,687,850. This amount is for construction costs only. The construction costs include all major infrastructure to match the 12 MGD withdrawal. Substantial completion is anticipated July 1, 2026, final completion September 30, 2026. An additional $5.5M will be spent for the Phase III Archaeological Study, easement acquisitions and permitting.

5. NORTHEAST CREEK WATER TREATMENT PLANT

A. NECWTP SEDIMENTATION BASINS IMPROVEMENT (SLUDGE VAC-SYSTEM UPDATE)

Due to the length of time necessary to obtain the materials for this project, staff is recommending that the project is cancelled and re-bid in the early spring of 2024. During the construction of this project, the plant will be offline for close to twenty-four hours at times. For safety, protection of life and property, this will be impossible during the high-water use time in the summer. Cancelling and re-bidding in the early spring of 2024, would provide a better time frame for completing this project in the fall of 2024, may also attract additional bidders and allow the Authority to make another funding request to the County to cover the costs to complete this project.

The County Procurement Office, Sam Massie has confirmed that cancelling the project and re-bidding in the spring is an acceptable practice.

A motion was made by Mr. Wilson to cancel the Northeast Creek Sedimentation Basin Improvement project and re-bid in the early spring of 2024. The motion was seconded by Mr. Kies and carried 4-0 among the members present.

(*Mr. Tom Filer arrived at 6:05 pm*)

B. CLEARWELL ROOF / BASEMENT FLOOR DRAINAGE

Major work on the Clearwell Roof / Basement Floor Drainage Project was completed Wednesday, September 13, 2023.

C. NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

The only item remaining is the delivery of the pallet jack. It has been ordered, but no word received on a delivery date.

D. 4th OPERATOR

The 4th operator position has been advertised. To date we have received one application, but the candidate is not meet the position qualifications.

E. HIGH SERVICE PUMP #2 – ROSS VALVE REPAIR / REPLACEMENT

Currently, the only high service pump in operation is #1. High service pump #2 is offline until the Clearwell Roof / Basement Floor Drainage Project can be completed and has had ample time to cure. When the ross valve is torn down, it will soak the basement floor.

F. SURFACE WASH ARM REPLACEMENT

Northeast Creek Water Treatment Plant staff will be replacing the surface wash arm with support from maintenance if needed.

G. ANTHRACITE – SKIMMING OF EXHAUSTED MATERIAL AND REPLACEMENT OF NEW MATERIAL

Northeast Creek Water Treatment Plant staff will be skimming off the exhausted anthracite filter material and replacing it with new anthracite. Maintenance staff will provide support to water plant staff if needed.

H. RAW WATER VALVE ACTUATOR

The raw water valve actuator at the Northeast Creek Water Treatment Plant will need to be replaced. Due to the weight involved (~800 lbs.), a contractor with the appropriate equipment will be required to ensure the safety of all involved.

I. SHOWER REPALCEMENT

The shower in the Northeast Creek Water Treatment Plant is currently unusable. Paisley-Kerr, the County's contract plumber will be onsite at the Louisa Regional Wastewater Treatment Plant; we will ask them to stop by the water plant to evaluate and provide a cost to make repairs and upgrade the shower to a functioning fixture.

J. DECKING ON GENERATOR

The only item at the Northeast Creek Water Treatment Plant that remains to be finalized for the fall protection safety is the decking around the Nanofiltration Building's generator. We currently have approximately $8,800 dollars left to address this item, but the original quote was in the amount of $26,000. That quote was at the height of COVID, and lumber prices were through the roof. The General Manager has asked staff to have Paisley-Kerr provide a quote for up to $10,000 to see how far that will get this project along. In the spring, maybe connection fees will increase, and we can complete the decking or prior to the busy spring / summer maintenance staff could finalize the decking.

6. ZION CROSSROADS WELL SYSTEM UPDATES

A. REPLACEMENT 50 HP PUMP/MOTOR (SPRING CREEK #3)

A replacement 50 hp pump/motor for Spring Creek #3 has been ordered for inventory. To date, the pump/motor has not been received.

B. SPRING CREEK #1 & #2

The interior piping materials have been ordered and staff continue to work with the County's Procurement Officer for a bid to have the piping materials installed once received.

The generator was set on Monday. Once complete, a service inspection will need to be conducted. The well pumps are scheduled to be wired soon. The rotation and blow off of the wells will need to be completed.

7. LOUISA REGIONAL WWTP

A. REGIONAL OPTIMIZATION AND PROCESS OPERATIONS STUDY

Staff met with the Dewberry team to discuss the organization of the final report. Staff have begun to implement recommendations for optimal treatment at the plant. Pre-treatment of the leachate from the landfill will need to be addressed at the landfill prior to delivery or onsite to prevent ammonia spikes in the future. This will be through a future upgrade at the Louisa Regional Wastewater Treatment Plant after the 2027 permit renewal cycle.

B. FRENCH DRAIN – TRENCH – PAISLEY-KERR

Paisley-Kerr will be cutting into the asphalt, pouring concrete, and installing a French drain to provide for better clean-up after septage deliveries. While the work is taking place and the concrete is setting up, septage receiving will be closed. Haulers have been notified in advance and we will continue to keep them updated as we move through the process.

C. LIGHTNING DAMAGE – FINAL INVOICES / AFFIDAVIT

Staff is working to ensure all the final invoices and affidavits have been received prior to closing out the lightning strike claim that occurred in July 2023.

D. BLOWER

There is currently a blower at the Louisa Regional Wastewater Treatment Plant offline. Best Blowers has been onsite to evaluate the repair / replacement costs.

E. WATER LEAK

Staff are reporting a water leak at the Louisa Regional Wastewater Treatment Plant. Maintenance staff will work with plant staff to evaluate the leak and plan repairs.

F. BEARING OUT IN DITCH #3

A bearing is out in ditch #3. Staff will be able to make the repairs necessary, but a crane service will need to be contracted to lift the motor for staff to access.

G. GENERATOR CONTROL BOARD / TRANSFER SWITCH

The generator control board / transfer switch is currently out of service. Staff can operate the generator by hand, while the replacement board / transfer switch can be ordered.

8. ZION CROSSROADS WWTP

A. DIESEL TANK ADDITION FOR GENERATOR

This project is complete, and the final invoice has been paid.

B. CENTRIFUGE

The 3,000-hour centrifuge "tune-up" has been completed.

C. GEAR BOX AND MOTOR FOR THE AUGER SCREEN

The gear box and motor for the auger screen repairs have begun and should be completed in the coming weeks.

D. BIO-CAT SAMPLING

The Bio-CAT sampling has been complete. The sampling results have not been received.

E. TOXICITY TESTING

The toxicity sampling has not begun. When the sampling is complete, we are hopeful the results will provide staff and DEQ with a better understanding as to why we are so close to violating toxicity at the Zion Crossroads WWTP.

F. LIGHTNING STRIKE

Staff continue to work through the lightning strike damage that occurred in July 2023. The County's insurance company has been onsite several times to inspect damage and have asked for a running total of costs to close out the claim when appropriate.

9. UPDATE – NEW BRIDGE FACILITIES

A. FUNDING REQUEST

The County approved and appropriated the latest $100,000 funding request to continue repairs and upgrades at the New Bridge Facilities

B. DIVER REPAIRS AND INSPECTION

The diver repairs and inspection of the effluent line are complete. An insurance claim for the initial damage has been filed with the County's insurance services provider. The only remaining item is the additional buoys to ensure boater and skier safety as well as the integrity of the effluent line.

The Board asked Kyle Eldridge, Assistant County Attorney to investigate the liability associated with the effluent line and saddle blocks.

The Board asked the General Manager to contact Sarah Marshall with Dominion Energy to inquire about the addition of signage.

C. WELL #1 INSPECTION REPORT

The evaluation of New Bridge Well #1 is complete. Once all the sample results have been reviewed and the Virginia Department of Health approves all the findings, well #1 can be brought online to provide 15 – 20 gallons of additional water per minute. That is an additional 21,600 – 28,800 gallons per day.

D. BLOWERS

Wastewater staff continue to get prices on new blowers for the New Bridge lagoon system. The old blowers have been repaired and rebuilt as much as reasonably possible. They simply do not provide reliable treatment.

E. LINER REPAIRS

Staff have been provided little guidance for repairing the liners in the New Bridge lagoons. We have reached out to the Department of Environmental Quality and consultants with very little or no response. Randy Gray, Wastewater Operation Manager will reach out to others this coming week, if we receive no feedback / guidance we will proceed with trying Flex Seal® as a temporary repair. It simply does not make good business sense to replace the liners when the facility will be upgraded in the coming years.

F. GRINDER PUMPS

Two of the grinder pumps have been replaced, with two to be replaced this week.

G. ELECTRICAL WORK (EXTENSION CORDS)

Staff continue to work towards making things operational and safe at the New Bridge facilities. One item we will be addressing in the coming weeks is running electrical lines to get extension cords off the ground.

H. BOOSTER PUMP

The booster pump has been received and will be installed in the coming weeks along with the replacement of some galvanized plumbing lines to PVC plumbing lines.

I. CHEMICAL HANDLING PROTOCOL

Staff have been working hard on chemical handling protocols, as many of the chemicals are mixed and delivered to the New Bridge site.

10. WATER SUPPLY EMERGENCY ORDINANCE

A. PROPOSED RATE SETTING NOTICE

The Board reviewed the latest revision of the proposed rates for the Water Supply Emergency Ordinance.

Upon completion of the review, Mr. Filer made a motion to authorize advertising for a public hearing to receive comments from the public on the rates proposed. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

11. LEAD SERVICE LINE INVENTORY

The Board was informed that Nellie Clatterbuck is making good, steady progress on the administrative research for the Lead Service Line Inventory, as well as progress on the Grease Trap Policy Inspections and Backflow Inspection.

12. NORTHEAST CREEK DAM (SOUTH ANNA DAM #22) AND BOWLERS MILL DAM (SOUTH ANNA #2)

A. APPLICATION FOR FUNDING (NORTHEAST CREEK DAM)

The paperwork has been received and the application will be completed in the coming weeks.

B. SITE MOWING

A contractor for mowing the dam slopes has been hired. To date the Northeast Creek Dam has been mowed and staff expects the Bowlers Mill Dam to be mowed in the next week or two.

C. INSPECTIONS

Once the mowing is complete, the engineer will be conducting the inspections.

D. LOW LEVEL VALVES – EXERCISED

Staff will be scheduling a diver to be onsite when the low-level valves are exercised to ensure no debris enters the valve and prevents it from closing.

13. ADDITION OF WATER TO ST. FRANCIS PUMP STATION

A. TOWN OF MINERAL APPROVAL

We are currently waiting on the contractor's schedule to clear and approval of adding water service to the St. Francis Pump Station from the Town of Mineral.

14. BUSINESS OFFICE

A. COPIER REPLACEMENT

The new copier has been ordered, but not received.

B. OFFICE EXPANSION

The office expansion is moving along. The walls are up, drywall complete, painting complete, flooring complete. Work remaining is electrical, then the contractor will be completing some of the work in the old office space. The General Manager did request a quote for replacing the carpeting in the old office space with the same LVT flooring installed in the new office space.

15. COUNTY OF LOUISA

A. AMAZON ANNOUNCMENT

The General Managers shared with the Board the announcement of Amazon Web Services locating at two compounds located within Louisa County. The compounds will be in two locations: one on the Green Acres Farm above the Northeast Creek Water Treatment Plant and the second in the Lake Anna area. Both will be using raw water from the Northeast Reservoir. Two separate engineering firms have agreed that the safe yield of the Northeast Reservoir is 3.2 MGD up from the original safe yield of 2.77 MGD. The Amazon Web Services project is expected to begin in FY2025 with the first phase of compounds completed in FY2026.

Mr. Filer stated that he believed the timeline was sooner. The first compounds would be completed in 2024. This was confirmed.

B. SHANNON HILL BUSINESS PARK

The Board of Supervisors approved the construction of a 500,000-gallon water storage tank in the Shannon Hill Business Park. Authority staff have been involved with the plans review process and in value engineering discussion with the contractor, Landmark.

C. ZION CROSSROADS WATER TANK PAINTING

At the September 5, 2023, Board of Supervisors meeting, a discussion regarding the painting of the Zion Crossroads water storage tank took place. The tank's color is like the original color selected by Jane Poore when she was on the Board of Supervisors. The wording was selected by the then Board of Supervisors because the thought process at the time was that the area would be a business park, not the retail center it has become. The General Manager has offered to have the paint and or logo changed however the Board of Supervisors desires, with the understanding that any additional cost above our current maintenance services agreement would be borne by the County.

16. MISCELLANEOUS

A. CONNECTIONS

The Board was informed that in the month of August 2023, no connections were received in the Zion Crossroads Service Area. One was received from the Town of Louisa, and one was received from the Sabor Mexican Restaurant for a water connection.

B. ONGOING CONSTRUCTION

Currently, the ongoing construction projects in the Zion Crossroads Service Area are the Hampton Inn, Spring Creek extensions and the Crossing Pointe Pump Station. In the Central Service Area, the storage facility on Rt.22 (Davis Highway) at the industrial park entrance, a medical facility in

the Industrial Park, the High School baseball / softball fields improvements, two homes on Rt. 33 (Jefferson Highway), and the Sabor Mexican Restaurant.

C. SHENANDOAH CROSSINGS

The Board reviewed the Virginia Department of Health – Office of Drinking Water letters regarding the cross-connection incident that occurred at Shenandoah Crossings. The water plant operator at Shenandoah Crossings was not sanctioned, but the contractor that made the cross-connection was.

F. New Business

17. NEC-WTP CHART RECORDER REPLACEMENT AND COMMUNICATION WITH IDA WELL

Pages 30 -39 of the September 13, 2023, LCWA Board of Directors Meeting Agenda include a quote for replacing the Chart Recorder with a digital display and the addition of a display screen. The Chart Recorder is antiquated technology and parts to keep it functional are hard to find. If the Chart Recorder goes down, the plant will fall out of compliance with waterworks regulation.

In addition to the display screen, the quote provides the addition of the ability for water plant staff to operate the Industrial Park Well. Currently, staff must stop by the well to manually turn the well off or on. This is limiting to staffs' ability to make decisions about the use of the well when there is a fire, the Town of Mineral's well is offline or demand is high.

This equipment replacement and additional communication system were budgeted for in the FY2024 Capital Improvement Budget.

The Board requested clarification on the deliverables prior to signing the proposal.

After the Board discussed the addition of a display screen and the ability to turn the IDA Well on or off, Mr. Filer made a motion to proceed with the provided quotes in the amount of $53,491.38. The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

18. FY2022 – ANNUAL AUDIT APPROVAL

The draft FY2022 Annual Audit was included in the September 13, 2023, agenda packet. The final FY2022 Annual Audit was provided to the Board members at the meeting. The delay in receiving the final audit for FY2022 is due to the auditing firm experiencing staffing shortages, putting off audits that are not required by regulation to have audits completed by a certain deadline.

Mr. Mike Moran provide the following summary, "We issued an unmodified (clean) audit opinion on the financials statements of the LCWA for the year ended June 30, 2022. In addition, we reported no material weaknesses or significant deficiencies in our Government Audit Standards report on Internal Control and on Compliance and Other Matters. The total net position of the LCWA was $25,359,574 at 6/30/22 compared to $25,277,502 at 6/30/21. Of that total net position $1,582,892 and $1,359,453 was unrestricted at 6/30/22 and 6/30/21 respectively. The total net position increased in FY22 by $82,072 compared to a small decrease in net position in FY21 of $4,546."

The Board requested approval of the FY2022 Annual Audit be added to the October 2023 Louisa County Water Authority Board of Directors meeting agenda.

19. UTILITY MASTER PLAN

Due to recent concerns from the developers of the approved development Zion Town Center, the General Manager requested a proposal for a Utility Master Plan for Zion Crossroads. The Zion Town Center development is located on the property behind the Lowes and Walmart retail stores in the Zion Crossroads Service Area. Their concern is the conveyance system to get sewage from their development of 723 units compromised of single-family homes, townhomes, and apartment units. There is capacity in the conveyance system currently, but they are concerned that by the time their project is half completed there will not be enough capacity and they will be responsible for upgrades to finalize their project. Their concerns are valid.

The General Manager reached out to other utilities to see how they handle these types of situations. All utilities contacted responded that they depend on their Master Plan. The last update to the Zion Crossroads Service Area Master Plan was in August of 2004.

A similar situation is currently happening in Spring Creek. They do not have enough capacity in the original lines to convey sewage from some of the final sections of the development. They are currently designing a gravity sewer line, pump station and force main to convey sewage to finalize the development. The sewage collection system in Spring Creek was never designed to convey all the sewage through that residential community to the Zion Crossroads WWTP.

Many conversations have ensued with County staff regarding the updating of the Zion Crossroads Service Area Master Plan, but there does not seem to be a desire by the County to proceed. The proposal being presented for the Board of Directors consideration is only for utilities and is not a full master plan for the service area. The cost was not included in the FY2024 Budget. All utilities in the Zion Crossroads Service Area are owned by the County, the Authority operates, without a contract.

The proposal exceeds our current contract services limit of $100,000 and would need to be advertised for bid.

Upon completion of the discussion, no action was taken.

20. UTILITY STANDARDS

The Louisa County Water Authority and Town of Louisa – Water and Sewer Utility Standards have not been updated since June 2008. Both the Town of Louisa and the Louisa County Water Authority have encountered questions not addressed or outdated in the Utility Standards.

The Authority's most recent issue occurred with the lettuce farm in the industrial park. The owners requested a ¾" water and sewer commercial connection for the business office, breakroom and bathrooms and an application for irrigation, both a 2" and a 3" connection. Both irrigation applications were provided with the final decision being provided after plans were complete for a 3" irrigation connection.

Meter setters beyond a 2" meter don't exist a 3" meter is required to be in a vault. This is not a Town of Louisa or an Authority standard, but an industry wide standard. The owners were quite taken back with the cost of $30,000 for the vault and wanted the Authority to reimburse them or provide a $30,000 credit to their water / sewer bill.

The Town of Louisa has had similar issues arise that are not addressed in the Utility Standards. The Water and Sewer Utility Standards Update would be a cost share project with the Town of Louisa. They have the proposal and will be discussing it with their utility committee in the coming weeks. The Authority's share of the Utility Standards update was included in the Capital Improvement Budget.

The General Manager recommended waiting to hear from the Town before deciding to proceed or not.

G. Reports

H. General Manager's Report

● **August levels**: At the end of August the static well levels are down approximately 3.94 feet from the end of July 2023 levels. From August 2022 to August 2023, the well levels are up approximately 3.9 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are down approximately 9.1 feet from the end of June 2023 levels. From July 2022 to July 2023, the well levels are up approximately 1.06 feet.

As of September 12, 2023, the Department of Environmental Quality Drought website is indicating normal conditions exist for groundwater, precipitation, and reservoir levels in the Northern Piedmont Region. Stream flows are at a watch level.

● The Board of Supervisors did authorize to proceed with the FY2024 appropriation for funds for the Northeast Creek Water Treatment Plant sludge-vac system and a supplemental appropriation for the New Bridge water and sewer system.

● Delivery of our PFAS samples was delayed and out of temperature when received at the lab. A follow-up sample will be collected on September 13, 2023.

● Cody R. Williams passed his Class III Wastewater Operators License and received a pay increase as prescribed by our current Employee Handbook.

● Henry O. Goodwin passed his Class IV Wastewater Operators License and received a pay increase as prescribed by our current Employee Handbook.

● The Get Captive Lagoon system at Crossing Pointe in Zion Crossroads will soon be closing. The UVA Dialysis, McDonalds/BP and Citgo have all been notified of the eminent closure and the need to pay connection fees to connect to the sewer system. All the above-mentioned businesses are already water customers. Total connection fees will be $178,377. We received the connection fee for Louisa Acquisitions – Building B in the Ferncliff Industrial Park in the amount of $27,001 and a connection fee was received from EGGC, LLC for a single-family home in Spring Creek $12,000.

● The current past-due listing is down to $5,206.65 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $9,121.92.

I. Committees

The Board was informed that the Personnel Committee was unable to meet as scheduled on September 6, 2023. Danielle Mychajlonka, Human Resources, and the General Manager have been reviewing the Employee Handbook and hope to meet with the committee to review the first three to four sections. Staff would like to finalize the Employee Handbook review process by the end of calendar year 2023.

J. Short Notice Items

LOUISA PLANT TRANSFER SWITCH

The Board was informed that the generator control board / transfer switch went out on the Louisa Regional Wastewater Treatment Plant. The generator can be manually turned on if it needs to be operated, however manually turning on the generator involves inserting a rod into the generator and pushing the switch into the on position. Staff have been directed to turn on the generator only manually when / if necessary. The lead time for the control board / transfer switch is 8 – 12 weeks.

At the conclusion of the discussion, Mr. Wilson made a motion to proceed with the estimate in the amount of $29,450. The motion was seconded by Mr. Filer and carried 5-0 among the members present.

K. Closed Session

A. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(7) CONSULTATION WITH LEGAL COUNSEL AND BRIEFINGS BY STAFF MEMBERS OR CONSULTANTS PERTAINING TO ACTUAL OR PROBABLE LITIGATION, WHERE SUCH CONSULTATION OR BRIEFING IN OPEN MEETING WOULD ADVERSLEY AFFECT THE NEGOTIATING OR LITIGATING POSTURE OF THE PUBLIC BODY.

B. CLOSED SESSION PURSUANT TO VA. CODE SECTION 2.2-3711(A)(1) TO DISCUSS AND CONSIDER PERSONNEL MATTERS; INCLUDING THE DISCIPLINE, APPOINTMENT, ASSIGNMENT, PERFORMANCE AND SALARIES OF SPECIFIC APPOINTEES AND EMPLOYEES.

Mr. Filer made a motion to close the regular open meeting and immediately reconvene in executive closed session for consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigation posture of the public body; and to discuss and consider personnel matters; including the discipline, appointment, assignment, performance and salaries of specific appointees and employees. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

RETURN TO OPEN MEETING:

Vice-Chairman Smith closed the closed session and immediately reconvened in regular open meeting at 8:14 pm.

CERTIFY:

Mr. Smith read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	ABSENT
Mr. Smith	YES
Mr. Filer	YES
Mr. Hardy	ABSENT
Mr. Kies	YES
Mr. Morgan	YES
Mr. Wilson	YES

The motion was carried 5-0 among the members present.

When the Board returned to regular open meeting, Mr. Wilson made a motion to approve the salary ranges as presented in the packet, The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

Mr. Morgan made a motion to authorize the General Manager to implement market adjustments to employees who fall below the minimum on the newly approved salary ranges. The motion failed due to not receiving a second.

Mr. Filer made a motion authorize up to $37,000 to make market adjustments to employees who fall below the minimum on the newly approved salary ranges at the General Manager's discretion. The motion failed due to not receiving a second.

Further discussion ensued. The Board directed the General Manager to make market adjustments to employees who fall below the newly approved salary ranges, within the approved budget.

Next meeting date - The next business meeting is scheduled for October 11, 2023

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Filer made a motion to adjourn at 8:22 pm. The motion was seconded by Mr. Kies and carried 5-0 among the members present.

BY ORDER OF:

William Douglas Smith
Vice-Chairman
LOUISA COUNTY WATER AUTHORITY